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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

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No. 2057/5 - MONDAY, FEBRUARY 05, 2018

(Published by Authority)

PART I : SECTION (I) — GENERAL
Government Notifications

L. D. B 15/2014

CONSTRUCTION INDUSTRY DEVELOPMENT ACT, No. 33 OF 2014

REGULATIONS made by the Minister of Housing and Construction under Section 26 and Section 30 of the Construction Industry Development Act, No. 33 of 2014 read with Section 58 of the aforesaid Act.

SAJITH PREMADASA,
Minister of Housing and Construction.

Colombo,
03rd January 2018.

Regulations

1. These Regulation may be cited as the Construction Industry Development (Registration of Qualifided Persons) Regulation of 2017.

2. Any person who wished to register as a Qualified Person under the Construction Industry Development, Act, No. 33 of 2014 shall make an application directly to the Construction Industry Development Authority (hereinafter referred to as the “Authority”) or to the Authority through the relevant professional body, as the case may be, to register such person as a Qualified Person.

3. The criteria for registration of persons specified in paragraphs (d) and (e) of Subsection (1) of Section 26 of the said Act or any other person other than a person specified in paragraphs (a), (b) and (c) of subsection (1) of Section 26 of the said Act shall be as specified in Part I of the Schedule hereto.

4. Any person registered with the Authority as a Qualified Person shall, upon payment of the applicable registration fee as specified in Part II of the Schedule hereto, be assigned with a registration number and issued with a Certificate of Registrtrion which shall be valid for a period as specified in such Certificate.



5. Any Qualified Person whose respective professional body or board of registration does not maintain standards of design and documentation shall adhere to the standards set out by the Authority as specified in Part III of the Schedule hereto.

6. Every Qualified Person registered with the Authority shall prior to the date of expiry of such registration, make an application directly to the Authority, or to the Authority through the relevant professional body, as the case may be along with the renewal fee as specified in Part II of the Schedule hereto for the renewal of such Certificate.

THE SCHEDULE

Part I

Criteria for Registration of Persons who are not members of the Professional Bodies of Institution of Engineers Sri Lanka, Sri Lanka Institute of Architects and Institute of Quantity Surveyors Sri Lanka and Architects Registration Board.

Criteria for registration of persons who are not members of the Professional Bodies of Institution of Engineers Sri Lanka, Sri Lanka Institute of Architects, and Institute of Quantity Surveyors Sri Lanka and Architects Registration Board as Qualified Persons, shall be as specified by the relevant professional or academic body of any board of registration established by an Act of Parliament.

THE SCHEDULE

Part II

Registration and Renewal Fee for Qualified Persons

Registration fee and renewal fee for persons who are not members of the professional bodies of institution of Engineers Sri Lanka. Sri Lanka Institute of Architects and Institute of Quantity Surveying Sri Lanka and Architects Registration Board shall be as mentioned below. Such fees may be revised by the Authority from time to time.

In Engineers

<i>Category</i>	<i>Registration Fee</i>	<i>Annual Renewal Fee</i>
Engineer	Rs. 100,000.00	Rs. 50,000.00
Associate/Affiliate Engineer	Rs. 90,000.00	Rs. 40,000.00

In Architecture

<i>Category</i>	<i>Registration Fee</i>	<i>Annual Renewal Fee</i>
Architect	Rs. 100,000.00	Rs. 50,000.00

In Quantity Surveying

<i>Category</i>	<i>Registration Fee</i>	<i>Annual Renewal Fee</i>
Quantity Surveyor	Rs. 100,000.00	Rs. 50,000.00
Assistant Quantity Surveyor	Rs. 90,000.00	Rs. 40,000.00

Above fees as excluding applicable taxes.

THE SCHEDULE

Part III

List of Documents of Standards Published by the Authority

<i>Publication No.</i>	<i>Name of Publication</i>
ICTAD/SBD/01	Standard Bidding Document - Procurement of Works - (2nd Edition (Revised) January 2007)
ICTAD/SBD/01(Vol. 1)	Standard Bidding Document (Volume - 1)
ICTAD/SBD/01(Vol. 2)	Standard Bidding Document (Volume - 2) - CD
ICTAD/SBD/02	Standard Bidding Document - Major contracts (2nd Edition (Revised) - January 2007)
ICTAD/SBD/02(Vol. 1)	Standard Bidding Document - Major Contracts (Volume - 1)
ICTAD/SBD/02(Vol. 2)	Standard Bidding Document - Major Contracts (Volume - 2) - CD
ICTAD/SBD/03	Standard Bidding Document - Minor Contracts - (2nd Edition (Revised) - January 2007)
ICTAD/SBD/03(Vol. 1)	Standard Bidding Document - Minor Contracts (Volume - 1)
ICTAD/SBD/03(Vol. 2)	Standard Bidding Document - Minor Contracts (Volume - 2) - CD
ICTAD/SBD/04	Standard Bidding Document - Design and Build Contract (1st Edition (Revised) May 2003)
ICTAD/SBD/04(Vol. 1)	Standard Bidding Document - Design and Build Contracts (Volume - 2) - CD
ICTAD/SBD/05	ඉදිකිරීම් ටෙන්ඩර් පිළිබඳ සම්මත ලේඛනය - කුඩා පරිමානයේ කොන්ත්‍රාත් (විමසුම සඳහා පමණි)
ICTAD/SBD/06	நியம கூறலுக்கான ஆவணம் - வேலைகள் தேடி வழங்கல் - சிறிய ஒப்பந்தங்கள் (தேவை நோக்கீட்டிற்கு மட்டும்)
CIDA/CE/107	Civil Engineering Standard Method of Measurement Sri Lanka (CESM-SL)
CIDA/SP/102	Specification for Irrigation of Land Drainage (1st Edition - January 2017)
SCA/3/2	Specification for Water Supply Sewerage and Storm Water Drainage - [2nd Edition (Revised) - April 2002]
SCA/3/3	Specification for Reclamation Works - [2nd Edition (Revised) - December 1999]
SCA/3/4	Specification for Ground Water Exploration and Exploitation - [2nd Edition (Revised) - May 1999]
SCA/4/I	Specification for Building Works (Vol. I) - [3rd Edition (Revised) - July 2004]
SCA/4/II	Specification for Building Works (Vol. II) - [2nd Edition (Revised) - October 2001]
SCA/5	Standard Specifications for Construction and Maintenance of Roads and Bridges [2nd Edition - June 2009]
SCA/6	Specification for Coastal and Harbour Engineering Works - [2nd Edition (Revised) - June 2008]
SCA/7	Specification for Landscape Works - Volume I
SCA/8	Specification for Electrical and Mechanical Works - [2nd Edition (Revised) - August 2000]
SCA/9	Specification for Fire Detection, Protection and Suppression Systems
CIDA/SP/101	Specification for Board and Cast In-Situ Reinforced Concrete Piles
ICTAD/DEV/17	Specification for Site Investigating for Building Works and Sample Bill of Quantities [1st Edition - April 1997]

L. D. B 15/2014

CONSTRUCTION INDUSTRY DEVELOPMENT ACT, No. 33 OF 2014

REGULATIONS made by the Minister of Housing and Construction under subsection (1), (2) and (4) Section 35 of the Construction Industry Development Act, No. 33 of 2014 read with Section 58 of the aforesaid Act.

SAJITH PREMADASA,
Minister of Housing and Construction.

Colombo,
03rd January 2018.

Regulations

1. These Regulation may be cited as the Construction Industry Development (Registration of Contractors) Regulation No. 1 of 2017.

2. Every contractor shall make an application along with any particulars as may be required by the Construction Industry Development Authority (hereinafter in these regulations referred to as the “Authority”) to register such contractor with the Authority.

3. The criteria of registration as a contractor shall be as specified in the First Schedule hereto.

4. Any contractor registered with the Authority shall, upon payment of the applicable registration fee as specified in the Second Schedule hereto, be assigned with a registration number and issued with a Certificate of Registration which shall be valid for a period as specified in such Certificate.

5. Every contractor registered with the Authority shall prior to the date of expiry of such registration, make an application to the Authority along with the renewal fee as specified in the Second Schedule hereto for the renewal of such Certificate.

SCHEDULE I

Criteria for Registration of Construction Contractors

A prospective Construction Contractor who fulfills the criteria under Section (I) shall be eligible to obtain the Registration with Construction Industry Development Authority (CIDA). The registration and grading are done in different construction categories and in numerous levels of financial limits which denote the project undertaking capacity of the incumbent contractors. It is described under Section (2). The structure of the evaluation scheme is described in Section (3). Basic point systems adapted for selection of grades is given in Section (4) in tables for all categories. Point allocation guiding details are listed in the Tables (a) to (k).

The comprehensive criteria of Registration and Monitoring of Construction Contractors in Main (Building and Civil Engineering) and Specialist (Electro Mechanical, Specialized Trades and Geo technical piling) are published as 03 booklets and are available in the CIDA Information Centre, for the use of the industry.

1.0 Eligibility for Registration

The Construction Contractors applying for registration with CIDA shall ;

- 1.1 be registered in Sri Lanka for the purpose of carrying out the business of construction works with the Register of Companies under the Companies Act, No. 07 of 2007 or with the Divisional Secretaries under under Business Names Ordinance/Provisional business names statutes.

“Community Based Organizations” shall produce a valid statutory documents issued for its registration by a relevant authority.

1.2 have at least 51% ownership by Nationals of Sri Lanka.

1.3 not be included in a Current list of suspended or defaulted construction contractors maintained by the Department of Public Finance of the General Treasury or any other state organization.

1.4 not be legally insolvent or declared bankrupt at the time of application.

Note.- PLCs (Public Liability Companies) listed in the local capital market or organizations wholly or partly owned by PLCs, after obtaining their original registration fulfilling the obligations/requirements under above (1.2), shall not be required to possess the 51% local ownership during the next renewal/registration, in view of the fact that their shares would be purchased by both local and foreign investors. However the Board of Directors of such PLC, shall have a local representation of more than 51% local directors.

2.0 Registration and Grading System with undertaking capacity limitations.

Construction contractors are considered under two main categories for registration and grading, *i. e.* Main Construction contractors and Specialist Construction Contractors.

2.1 Main Construction Contractors are registered under 11 Grades (CS2 to C9) and under 9 fields of specialities

<i>Grade</i>	<i>Financial Limit (X) (Rs. Million)</i>
CS 2	$X > 3000$
CS 1	$3000 \geq X > 1500$
C 1	$1500 \geq X > 600$
C2	$600 \geq X > 300$
C3	$300 \geq X > 150$
C4	$150 \geq X > 50$
C5	$50 \geq X > 25$
C6	$25 \geq X > 10$
C7	$10 \geq X > 05$
C8	$05 \geq X > 02$
C9	$02 \geq X$

Specialities of Registration under Main Construction Contractors.

- Building
- Highway
- Bridge
- Water Supply and Sewerage
- Irrigation and Drainage Canals
- Dredging and Reclamation
- Storm Water disposal and Land Drainage
- Maritime Construction
- Heavy Construction (Areas to be specified)

2.2 Specialist Construction Contractors are registered under three (3) main fields

2.2.1 Electrical and Mechanical Services (EM)

Organization providing Electrical and Mechanical Services are classified under the category (EM) and will be registered under five (5) grades (EMI - EM5) and relevant twelve (12) specialities.

<i>Grade</i>	<i>Financial Limit (X) Rs. Million</i>
EM1	$X > 50$
EM2	$50 \geq X > 25$
EM3	$25 \geq X > 10$
EM4	$10 \geq X > 02$
EM5	$02 \geq X$

Specialities of Registration under Electrical and Mechanical Services.

- Electrical Installation (Low Voltage) (EI-LV)
- Electrical Installation (Medium Voltage) (EI-MV)
- Elevators, Escalators and Travellators (EET)
- Extra Low Voltage Installation (Data, Telecommunication, Security Systems, Public Address Systems, Pipe Music (ELV)
- Fire Detection, Protection and Suppression (FDPS)
- Generators (Gen)
- Heavy Steel Fabrications (HSF)
- LP Gas Systems (LPG)
- Mechanical Ventilation and Air Conditioning (MVAC)
- Medical Gas Systems
- Plumbing and Drainage (PD)
- Refrigeration (RF)

2.2.2 Specialized Construction Contractors

Organization engaged in Finishing Works and other specialized trades are classified under the category Specialized Construction and will be registered under five (5) grades (SPI - SP5) and relevant nine (09) specialties.

<i>Grade</i>	<i>Financial Limits (X) Rs. Million</i>
SP1	$X > 50$
SP2	$50 \geq X > 25$
SP3	$25 \geq X > 10$
SP4	$10 \geq X > 02$
SP5	$02 \geq X > X$

Specialized Construction Contractors are registered under following speciality areas ;

- a. Aluminium and Finishes (A &F)
- b. Carpentry and Joinery (Carp)
- c. Floor, Wall and Ceiling Finishes (FW&C) (must specify the finish)
- d. Furniture, Fittings and Equipments (FF & E)
- e. Landscaping (LA)
- f. Light Metal Work (ME)
- g. Soil Nailing and Stabilization (SN)
- h. Swimming Pools (SP)
- i. Water Proofing (WP)

2.2.3 Geotechnical Piling Construction Contractors (GP)

Piling construction contractors are considered under 02 main categories for registration and grading.
ie. ; Geotechnical Piling, Precast (GP-P) and Geotechnical Piling - Bored Cast In-situ (GP - B)

<i>Grade</i>	<i>Financial Limits (X) Rs. Million</i>
GP-P	$X \geq 50$
GP - B1	$X > 150$
GP - B2	$150 \geq X > 50$
GP - B3	$50 \geq X > 10$
GP - B4	$10 \geq X$

Note.- The Financial Limit or Capacity Limit of a Contractor is the maximum value of projects that can be handled by the incumbent contractor at a time. The contractor shall disclose all relevant information of projects in hand to respective Clientele when such details are requested for evaluating during procurement procedures/tender awards.

3.0 Key Areas of Evaluation

Eligibility of a Contractor is evaluated under following key areas of importance

3.1 Financial Capacity

3.1.1 Working Capital/Net Worth

3.1.2 Bank accounts and financial facilities from Banks. (Permanent Overdraft Facilities POD). Letters of Credit Lines, Guarantee Facilities etc.)

3.2 Technical Capacity

3.2.1 Human Resource

- (a) Professional and other technical staff ;
- (b) Supervisory Staff ;
- (c) National Vocational Qualification (NVQ) Level 3 qualified staff

3.2.2 Work Experience

- (a) Turnover from construction during last 5 years
- (b) The largest relevant project/contract completed during the last 05 years

3.3 Machinery & Equipment

- * This is not mandatory
- * Additional points can be gained by grades C3 and above

3.4 Other considerations

3.4.1 Organization/Establishment

- (a) Qualification of Owners/Directors
- (b) General Management staff
- (c) Experience of the Organization

3.4.2 Organizational Management

3.4.2.1 System Management

- (a) Possession of current ISO 9000 Quality Management System Certification
(Mandatory - for CS2, CS1, C1, C2, C3 grades)
- (b) Possession of current ISO 14000 Environmental Management System Certification
(Mandatory for CS2, CS1 grades)
- (c) Possession of current OHSAS 18000 Occupational Health and Safety Systems
Certification (Mandatory for CS2 and CS1 grades)

3.4.2.2 Constuction Safety and Occupational Health

3.4.2.3 Continuous Competency Development (CCD)

3.4.2.4 Construction Excellence Awards

3.4.2.5 Provision of Training to External Trainees

3.4.2.6 Corporate Social Responsibility (CSR)

Evaluation is carred out accroding to a point system.

4.0 Minimum Points Requirement

4.1 Main Construction Contractors

Grading	1.0 Financial Capacity		2.0 Technical Capacity						3.0 Other Considerations		Total Points Required (Minimum)		
			2.1.a Professional Staff & Other Technical Staff {Ref. table (a)}		2.1.b Supervisory Staff {Ref. table (e)}		2.1.c.NVQ Level3 Qualified Staff (Persons) {Ref. table (e)}		2.2 Work Experience			ISO, OHSAS, Construction Safety and Occupational Health {Ref. Table (h), (f) and (g)}	CCD, Organization Awards, Training, CSR (Ref. table (i), (j) & (k))
									Rs.	Points			
	Rs.	Points	Rs.	Points	Rs.	Points	Points	Points					
Grade C 9	0.16 M	0.4	—	1.0	—	—	—	—	—	—	—	1.4	
Grade C 8	0.4 M	1.0	—	1.0	—	—	—	—	—	—	—	2.0	
Grade C 7	0.8 M	2.0	2.0	1.0	—	—	—	—	—	—	—	5.0	
Grade C 6	02 M	3.0	2.0	2.5	—	30 M	1.5	4 M	1.0	—	—	10.0	
Grade C 5	04 M	4.0	3.0	3.5	—	75 M	3.75	10 M	2.5	—	—	67.0	
Grade C 4	12 M	8.0	4.0	4.0	—	150 M	7.5	20 M	5.0	—	—	99.0	
Grade C 3	24 M	12.0	6.0	4.0	—	450 M	22.5	60 M	9.0	32.0	100.0	186.0	
Grade C 2	48 M	24.0	7.0	5.0	—	900 M	45.0	180 M	21.0	32.0	101.0	235.0	
Grade C 1	120 M	60.0	12.0	8.0	10.0	1800 M	90.0	360 M	39.0	37.0	157.0	413.0	
Grade CS 1	240 M	120.0	50.0	25.0	15.0	4500 M	225.0	900 M	93.0	106.0	216.0	850.0	
Grade CS 2	400 M	200.0	65.0	50.0	20.0	9000 M	450.0	1800 M	183.0	106.0	235.0	1310.0	

Note:- For Grades C2 and below (Not for C1, CS1 & CS2)
Grades can be obtained by fulfilling 75% of the requirement in any one of the areas, except Financial Capacity, Largest project completed & Total Points

4.2 Specialist Construction Contractors

4.2.1 Electrical & Mechanical Services (EM)

Grading	1.0 Financial Capacity		2.0 Technical Capacity						3.0 Other Considerations		Total Points Required (Minimum)
			2.1.a Professional Staff & Other Technical Staff {Ref. table (b)}	2.1.b Supervisory Staff {Ref. table (e)}	2.1.c.NVQ Level3 Qualified Staff (Persons) {Ref. table (e)}	2.2 Work Experience		ISO, OHSAS, Construction Safety and Occupational Health {Ref. Table (g)(h) and (f)}	CCD. Organization Awards, Training, CSR (Ref. table (i),(j) & (k))		
						2.2.a Last 5 years T/O	2.2.b Largest Project				
	Rs.	Points	Points	Points	Points	Rs.	Points	Rs.	Points	Points	
Grade EM1	12 M	8.0	4.0	4.5	3.0	180 M	9.0	25 M	6.25	110.0	180.0
Grade EM2	4 M	4.0	3.0	3.0	--	80 M	4.0	12 M	3.0	70.0	88.0
Grade EM3	2 M	3.0	2.0	3.0	--	40 M	2.0	6 M	--	20.0	32.0
Grade EM4	1.0 M	2.5	2.0	2.0	--	--	--	--	--	10.0	17.0
Grade EM5	0.2 M	0.5	--	1.0	--	--	--	--	--	--	1.5

Note - Following is applied only for Grades EM2 & below (Not for EM1)
Grades can be obtained by fulfilling 75% of the requirement in any one of the areas, except Financial Capacity, Largest project completed & Total Points

4.2.2 Specialized Construction Contractors
4.2.2.1 Aluminium & Finishes (A & F), Water Proofing (WP), Swimming Pools (SP), Soil Nailing & Stabilization (SN)

Grading	1.0 Financial Capacity		2.0 Technical Capacity										3.0 Other Considerations		Total Points Required (Minimum)
			2.1.a Professional Other Technical Staff {Ref. table (c)}		2.1.b Supervisory Staff {Ref. table (e)}	2.1.c NVQ Level 3 Qualified Staff {Ref. table (e)}	2.2 Work Experience				ISO, OHSAS, Construction Safety and Occupational Health {Ref. Table (g), (h) and (f)}	CCD. Organization Awards, Training, CSR (Ref. table (i), (j) & (k))			
							Points	Rs.	Points	Rs.			Points		
Grade SP1	12 M	8.0	01. B. Sc. Civil/ Mechanical Engineer with 5 years experience or NDT with 10 years experience	3.0	03. Technical Assistants [NDT, HNDE (Civil/ Mechanical) + 3 years experience or equivalent)	4.5	3.0	180 M	9.0	24 M	3.75	30.0	110.0	173.0	
Grade SP2	4 M	4.0		3.0		3.0	–	60 M	3.0	12 M	2.5	–	50.0	66.0	
Grade SP3	2 M	3.0		2.0		3.0	–	–	–	6 M	1.5	–		10.0	
Grade SP4	1 M	2.5		2.0		2.0	–	–	–	–	–	–		6.5	
Grade SP5	0.2 M	0.5		–		1.0	–	–	–	–	–	–	–	1.5	

Note - Following is applied only for Grades SP2 and below (Not for SP1)
Grades can be obtained by fulfilling 75% of the requirement in any one of the areas, except Financial Capacity, Largest project completed & Total Points

4.2.2.2 Floor, Wall & Ceiling Finishes (Fw & C), Carpentry & Joinery (Carp), Light Metal Work (ME), Landscaping (LA), Furniture, Fitting & Equipments (FF&E)

Grading	1.0 Financial Capacity		2.0 Technical Capacity						3.0 Other Considerations		Total Points Required (Minimum)
			2.b Supervisory Staff {Ref. table (e)}	2.1.c NVQ Level 3 Qualified Staff {Ref. table (e)}	2.2 Work Experience				ISO, OHSAS, Ref. Table (g)	CCD, Organization Awards, Training, CSR (Ref. table (i), (j) & (k))	
					2.2.a Last 5 years T/O	Rs.	Points	Rs.			
Rs.	Points	Rs.	Points	Rs.					Points	Points	
Grade SP1	12 M	8.0	3.0	3.0	180 M	9.0	24M	3.75	30.0	110.0	167.0
Grade SP2	4 M	4.0	2.0	3.0	60 M	3.0	12 M	2.5	–	50.0	62.0
Grade SP3	2 M	3.0	2.0	–	–	–	6 M	1.5	–	–	7.0
Grade SP4	1 M	2.5	1.0	–	–	–	–	–	–	–	3.5
Grade SP5	0.2 M	0.5	1.0	–	–	–	–	–	–	–	1.5

Note - Following is applied only for Grades SP2 & below (Not for SP1)
Grades can be obtained by fulfilling 75% of the requirement in any one of the areas, except Financial Capacity, Largest project completed & Total Points

4.2.3 GEO Technical Piling Construction Contractors

4.2.3.1 GEO Technical Piling Pre Cast

Grading	1.0 Financial Capacity		2..0 Technical Capacity						3.0 Other Considerations		Total Points Required (Minimum)
			2.1.a Professional Staff & Other Technical Staff {Ref. table (a)}	2.1.b Supervisory Staff {Ref. table (e)}	2.1.c.NVQ Level3 Qualified Staff (Persons) {Ref. table (e)}	2.2 Work Experience		ISO, OHSAS, Construction Safety and Occupational Health (Ref. table (g), (h) and (f))	CCD. Organization Awards, Training, CSR (Ref. table (i), (j) & (k))		
	2.2.a Last 5 years T/O	2.2.b Largest Project				Points	Rs.			Points	
Rs.	Points	Points	Rs.	Points	Rs.	Points	Points				
Grade GP-P	20 M	10.0	6.0	3.0	150 M	7.5	35M	6.5	144.0	80.0	263.0

4.2.3.1 GEO Technical Piling - Bord Cast Insitu

Grading	1.0 Financial Capacity		2.0 Technical Capacity						3.0 Other Considerations		Total Points Required (Minimum)	
			2.1 a Professional Staff & Other Technical Staff {Ref. table (d)}	2.1.b Supervisory Staff {Ref. table (e)}	2.1.c.NVQ Level3 Qualified Staff (Persons) {Ref. table (e)}	2.2 Work Experience		ISO, OHSAS, Construction Safety and Occupational Health {Ref. Table (g), (h) & (f)}	CCD. Organization Awards, Training, CSR (Ref. table (i), (j) & (k))			
	2.2.a Last 5 years T/O	2.2.b Largest Project										
						Rs.	Points			Rs.		Points
Grade GP-B1	30 M	15.0	9.0	9.0	3.0	500 M	25.0	70 M	10.0	144.0	80.0	295.0
Grade GP-B2	20 M	10.0	6.0	6.0	-	150 M	7.5	35 M	6.5	40.0	50.0	126.0
Grade GP-B3	10 M	7.0	3.0	3.0	-	25 M	1.25	6 M	1.5	-	-	16.0
Grade GP-B4	3 M	3.5	-	3.0	-	-	-	-	-	-	-	6.5

Note. - Following is applied only for Grades GP-P, GP-B2 & below (Not for GP - B1)
Grades can be obtained by fulfilling 75% of the requirement in any one of the areas, except Financial Capacity, Largest project completed & Total Points

TABLES FOR GUIDING POINT ALLOCATIONS

Notes on point allocation for Human Resources/Staff

- (1) Standardizing given for these categories are solely for the purpose of evaluating construction contractors based on their Human Resources. This is valid only for points for CIDA registration and not to be taken for any national rating systems/comparisons.
- (2) The experience will be counted from the date of the basic degree/diploma or equivalent qualification.
- (3) All Categories of Engineers shall have been qualified in relevant fields. (e. g. : Civil Engineering for C grades, Electrical and mechanical for EM grades)

(a) Professional and other Technical Staff for Main Construction Contractors

<i>Category</i>	<i>Points</i>
Chartered Engineer with 15 years experience	06
Chartered Architect with 15 years experience	06
Chartered Quantity Surveyor with 15 years experience	06
Chartered Engineer with 10 years experience	05
Chartered Architect with 10 years experience	05
Chartered Quantity Surveyor with 10 years experience	05
Chartered Engineer	04
Chartered Architect	04
Chartered Quantity Surveyor	04
Departmentally Qualified Surveyor	04
Graduate Engineer or equivalent with 6 years experience	04
Incorporated Engineer with 10 years experience	04
Graduate Engineer or equivalent	03
Architect	03
Graduate Quantity Surveyor	03
Incorporated Engineer	03
Engineer (Vocationally Qualified)	03
Assistant Engineer	02
Architectural Licentiate	02
Assistant Quantity Surveyor	02

(b) Professional & Other Technical Staff for EM Trades

<i>Category</i>	<i>Points</i>
Chartered Engineer/Member of Chartered Institute Building Services Engineering (CIBSE), (UK), with 15 years experience	06
Chartered Quantity Surveyor with 15 years experience	06
Chartered Engineer/Member of CIBSE (UK), with 10 years Experience	05
Chartered Quantity Surveyor with 10 years experience	05
Corporate members of Institution of Fire Engineers (IFE) (UK)	05
Chartered Engineer/Member of CIBSE (UK)	04
Member of Chartered Institution of Plumbing and Heating Engineers, UK (CIPHE)	04
Chartered Quantity Surveyor	04
Departmentally Qualified Engineer	04
Graduate Engineer or equivalent with 6 year experience	04
Incorporated Engineer with 10 years experience	04
Member of American Society of Heat, Refrigeration and Air Conditioning (ASHRAE)	03
Member of Institute of Refrigeration (MINSTQ)	01
Member of Engineer or equivalent	03
Graduate Quantity Surveyor	03
Incorporated Engineer	03
Engineer (Vocationally Qualified - NVQ Level 7)	03
Assistant Engineer	02
Assistant Quantity Surveyor	02

(c) Professional & Other Technical Staff for Specialized Trades

<i>Category</i>	<i>Points</i>
Chartered Engineer with 15 years experience	06
Chartered Architect with 15 years experience	06
Chartered Quantity Surveyor with 15 years experience	06
Chartered Engineer with 10 years experience	05
Chartered Architect with 10 years experience	05
Chartered Quantity Surveyor with 10 years experience	05
Chartered Engineer	04
Chartered Architect	04
Chartered Quantity Surveyor	04
Departmentally Qualified Engineer	04
Graduate Engineer or equivalent with 6 years experience	04
Incorporated Engineer with 10 years experience	04
Graduate Engineer or equivalent	03
Architect	03
Graduate Quantity Surveyor	03
Incorporated Engineer	03
Engineer (Vocationally Qualified)	03
Assistant Engineer	02
Architectural Licentiate	02
Assistant Quantity Surveyor	02

(d) Professional & Other Technical Staff for Geo Technical Piling Contractors

<i>Category</i>	<i>Points</i>
Chartered Structural Engineer with 12 years experience as a Structural Engineer	05
Chartered Civil/Mechanical Engineer with minimum 03 years experience in Piling & 12 years overall experience	05
Chartered Civil Engineer specialized in Geotechnical engineering with 10 years experience	05
Chartered Structural Engineer, with 10 years experience as a Structural Engineer	04
Chartered Civil/Mechanical Engineer with minimum 02 years experience in Piling & 10 years overall experience	04
Chartered Geotechnical Engineer	04
Graduate Civil/Mechanical Engineer with 10 years overall experience and minimum of 3 years experience in Piling works	03
Graduate Civil/Mechanical Engineers with 5 years overall experience	02
Graduate Civil/Mechanical Engineer with 03 years overall experience	02
Chartered Quantity Surveyor	03
Graduate Quantity Surveyor	02
Incorporated Civil/Mechanical Engineer	02
Departmentally qualified Civil/Mechanical Engineer	02
Graduate Engineer	02

(e) Supervision Staff and NVQ Level 3 qualified staff

<i>Category</i>	<i>Points</i>
Engineering Assistant	1.75
Technical Assistant	1.5
Quantity Surveying Assistant	1.5
Foreman	1.25
Supervisor	1.25
Construction Craftman/NVQ Level 3	1.0

(f) Construction Safety & Occupational Health Staff

<i>Category</i>	<i>Points</i>
Construction Safety and Occupational Health Manager	4.0
Construction Safety and Occupational Health Officer	3.0
Construction Safety and Occupational Health Supervisor	2.0

g) System Management

System Management is an indicator of the stability of the company. Requirement of system management has been made mandatory for higher grades (for grades C3 and above, for EMI, SPI and GP-P, and GP-BI) are as follows :

<i>Main Contractor</i>		<i>Specialist Contractor</i>		<i>Piling Contractor</i>	
<i>Grade</i>	<i>Requirement</i>	<i>Grade</i>	<i>Requirement</i>	<i>Grade</i>	<i>Requirement</i>
CS2	ISO 9000, ISO 14000 OHSAS 18000	EMI & SPI	ISO 9000	GP-P & GP- B1	ISO 9000
CS1	ISO 9000, ISO 14000 OHSAS 18000				
CI, C2	ISO 9000				

Point allocation will be 30 points per System Certification.

(h) Construction Safety & Occupational Health

The essential need of engagement of Construction Safety and Occupational Health has been identified for the healthy growth of the Construction Industry and the requirement has been made mandatory for the higher grades only at the moment are as follows :

<i>Main Contractor</i>		<i>Specialist Contractor</i>		<i>Piling Contractor</i>	
<i>Grade</i>	<i>Staff</i>	<i>Grade</i>	<i>Staff</i>	<i>Grade</i>	<i>Staff</i>
CS2 & CS1	01 No. Construction Safety & Occupational Health Manager 02 Nos. Construction Safety & Occupational Health Officers 03 Nos. Construction Safety & Occupational Health Supervisors	EMI	01 No. Construction Safety & Occupational Health Officer 01 No. Construction Safety & Occupational Health Supervisor	GP-P & GP- B1	01 No. Construction Safety & Occupational Health Officers 01 No. Construction Safety & Occupational Health Supervisor
C1	01 No. Construction Safety & Occupational Health Officer 02 Nos. Construction Safety & Occupational Health Supervisor	SP1	01 No. Construction Safety & Occupational Health Supervisor {for (a) Aluminium & Finishes (b) Soil Nailing & Stabilization categories only)		
C2 & C3	01 No. Construction Safety & Occupational Health Supervisor				

(i) Continuous Competency Development (CCD) - during three (3) year duration

Continuous Competency Development (CCD) has been introduced to encourage contractors to update contractors/their staff knowledge in the Industry & it has been made mandatory for grades as follows :

<i>Main Contractor</i>		<i>Specialist Contractor</i>		<i>Piling Contractor</i>	
<i>Grade</i>	<i>Points</i>	<i>Grade</i>	<i>Points</i>	<i>Grade</i>	<i>Points</i>
CS2, CS1	200	EMI, EM2, SP1	70	GP-B1, GP-P	70
C1	150	SP2	50	GP-B2	50
C2, C3	100				
C4	70				
C5	50				

(j) Provision of Training to External Trainees

With the aim of supporting the new entrants to the Construction Industry, provision of training to external trainees has been made mandatory & the current requirement is as follows :

<i>Main Contractor</i>		<i>Specialist Contractor</i>		<i>Piling Contractor</i>	
<i>Grade</i>	<i>No. of Trainees (Minimum)</i>	<i>Grade</i>	<i>No. of Trainees (Minimum)</i>	<i>Grade</i>	<i>No. of Trainees (Minimum)</i>
CS2	50	EMI & SP1	05	GP-B1, GP-P	05
CS1	30				
C1	10				
C2 & C3	05				
C4	02				

(K) Corporate Social Responsibility (CSR) Points

Corporate Social Responsibility is a responsibility of every business concern. However this has been introduced to the Guideline as an initial step for grades as follows :

<i>Main Contractor</i>		<i>Specialist Contractor</i>		<i>Piling Contractor</i>	
<i>Grade</i>	<i>Rs. Million in one year</i>	<i>Grade</i>	<i>Rs. Million in one year</i>	<i>Grade</i>	<i>Rs. Million in one year</i>
CS2	5.0	EMI & SP1	0.5	GP-B1, GP-P	05
CS1	2.0				
C1	1.0				
C2	0.5				
C3	0.25				

Point allocation will be 01 point to 0.1 million

SCHEDULE 2

Registration of Constructions Contractors

Fee Schedule for Registration & Renewals

(a) Main Construction Contractors

<i>Grade</i>	<i>Financial Limit (X) (Rs. Million)</i>	<i>Registration Fee/ Renewal Fee per year Rs.</i>
CS 2	$X > 3000$	500,000.00+VAT
CS 1	$3000 \geq X > 1500$	300,000.00+VAT
C 1	$1500 \geq X > 600$	150,000.00+VAT
C2	$600 \geq X > 300$	60,000.00+VAT
C3	$300 \geq X > 150$	37,000.00+VAT
C4	$150 \geq X > 50$	31,000.00+VAT
C5	$50 \geq X > 25$	26,000.00+VAT
C6	$25 \geq X > 10$	20,000.00+VAT
C7	$10 \geq X > 05$	15,000.00+VAT
C8	$05 \geq X > 02$	8,000.00+VAT
C9	$02 \geq X$	6,000.00+VAT

(b) Specialist Construction Contractors

<i>Grade</i>	<i>Financial Limit (X) (Rs. Million)</i>	<i>Registration Fee/ Renewal Fee per year Rs.</i>
EM1/SP1	> 50	31,000.00+VAT
EM1/SP2	$50 \geq X > 25$	26,000.00+VAT
EM1/SP3	$25 \geq X > 10$	20,000.00+VAT
EM1/SP4	$10 \geq X > 02$	15,000.00+VAT
EM1/SP5	$02 \geq X$	5,650.00+VAT

(c) Piling Construction Contractors

<i>Grade</i>	<i>Financial Limit (X) (Rs. Million)</i>	<i>Registration Fee/ Renewal Fee per year Rs.</i>
GP - P	$X > 50$	25,000.00+VAT
GP - B1	$X > 150$	50,000.00+VAT
GP - B2	$150 \geq X > 50$	25,000.00+VAT
GP - B3	$50 \geq X > 10$	11,500.00+VAT
GP - B4	$10 \geq X$	6,500.00+VAT

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L. D. B 15/2014

CONSTRUCTION INDUSTRY DEVELOPMENT ACT, No. 33 OF 2014

Regulations made by the Minister of Housing and Construction under subsection (2) of Section 45 of the Construction Industry Development Act, No. 33 of 2014 read with Section 58 of the aforesaid Act.

SAJITH PREMADASA,
Minister of Housing and Construction.

Colombo,
03rd January 2018.

Regulations

1. These Regulation may be cited as the Construction Industry Development (Technical Auditing Procedure and Fees) Regulation of 2017.

2. The procedure for technical auditing of any identified construction work shall be carried out in the manner as specified in the First Schedule hereto.

3. The fees for such Technical Auditing shall be levied at the rates as specified in the Second Schedule hereto.

4. In these regulations -

“Identified Construction Work” shall have the same meaning as in the Construction Industry Development Act, No. 33 of 2014 ;

“Technical Auditing” shall have the same meaning as in the Construction Industry Development Act, No. 33 of 2014 ;

THE FIRST SCHEDULE

Procedure for Technical Auditing of Any Identified Construction Work

1. Request for Technical Auditing shall be forwarded to the Authority in the form of applicant on for technical auditing available at the Authority.
2. The Authority shall ascertain whether the work referred to in the request is technically auditable or not. If the request is not technically auditable, it shall be informed to the Applicant in writing within 4 working days from the receipt of such request.
3. Authority shall within 14 working days from the date of receipt of the application, appoint Quality Management Auditor/s selected from among the persons who are listed in the Register of Quality Management Auditors maintained by the Authority.
4. The Quality Management Auditors shall study the application for audit and prepare the audit scope statement and cost proposal.
5. The scope statement and the cost proposal received shall be evaluated by an Evaluation Panel appointed by the Authority and shall be approved by the Authority after making necessary revisions, if any
6. The Authority shall enter in to an agreement with the Applicant which includes scope, cost and duration of the technical audit and responsibilities and obligations of the two parties.
7. Depending on the extent and complexity, the auditing team may consist of a maximum of three members.
8. If it is two or three member Audit Team, the Authority shall decide the leader of the team in consultation with the Quality Management Auditors selected, Decision of the Authority shall be final and binding.
9. The replacement of Quality Management Auditors shall be at the discretion of the Authority in the event that the Quality Management Auditors are unable to perform or found not suitable.
10. Authority shall have the right to terminate services of any Quality Management Auditors if he is found guilty of any misconduct with immediate effect or for other reasons such as conflict of interest as decided by the Authority with 14 working days prior notice. In such cases, works carried out by Quality Management Auditor will not be accepted.
11. In case of Quality Management Auditor withdrawing from the audit due to falling ill for a prolonged period or under any acceptable reason, the work already carried out by such Quality Management Auditor is considered valid and the Authority may or may not decide to appoint another person as a replacement as the case may be.
12. The Applicant and other related parties shall furnish all information required by the Quality Management Auditors.
13. The Quality Management Auditors may visit the sites of the Identified Construction Work and other locations as required for Technical Auditing purposes. The party who is in possession of sites and such other locations upon receipt of such written instructions by the Authority shall allow the persons authorized by the Authority to enter into such premises to carry out Technical Auditing.
14. The Quality Management Auditors may, through the Authority, summon any party who has connection with the Identified Construction Work to obtain evidence orally, in writing by affidavit, or any other acceptable means.

15. The Technical Auditing report shall essentially include date of issue, an introduction, an executive summary, scope of the Technical Auditing, detailed descriptions of the Technical Auditing done, applicable analysis methods, standards referred for checking compliance and/or conformity, recommendations and conclusions. It shall also include copies of all relevant documents and correspondence referred to and in substantiation of the report.

THE SECOND SCHEDULE

Rates for Levying of Fees of Technical Auditing

<i>Item Description</i>	<i>Amount (Rs)</i>
1. Application fee for requesting Technical Auditing	Rs. 5,000.00
2. Advanced Payment to proceed with Technical Auditing	50% of the cost estimate
3. Payment to be made before issuing the report	Balance 50% of the cost estimate

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